

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUP0043595: CORINNE THOMAS vs COSTCO WHOLESALE CORPORATION,
et al.**

09/15/2026 in Department 41

**Motion for Order COMPELLING DEFENDANT COSTCO WHOLESALE
CORPORATIONS FURTHER RESPONSES TO PLAINTIFFS REQUESTS FOR
PRODUCTION OF DOCUMENTS, SET TWO, AND REQUEST FOR MONETARY
SANCTIONS**

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

If you wish to submit on the Court's tentative decision without appearing, please send an email to the following address by 8:00 a.m. on the date of the hearing with counsel for all parties copied on your email: courtroom41@ventura.courts.ca.gov. Please state on the subject line of your email: "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative decision is subject to change.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the Court. A "notice of ruling" in lieu of this procedure is not authorized.

The Court intends to rule as follows:

Plaintiff Corrine Thomas's Motion For Order Compelling Defendant Costco Wholesale Corporation's Further Responses to Plaintiff's Request for Production of Documents, Set Two and Request for Monetary Sanctions in the Amount of \$5,060.00 is MOOT in part and GRANTED in part.

The Motion to Compel Further Responses is MOOT. Defendant Costco Wholesale Corporation served further verified responses on August 31, 2026.

Plaintiff's Request for Monetary Sanctions is GRANTED. Defendant Costco Wholesale Corporation is required to pay Plaintiff monetary sanctions in the amount of \$1,810 within 30 days of this ruling.

Notice to be provided by Plaintiff.

I. Background

The Complaint was filed on May 5, 2025, by plaintiff Corrine Thomas (“Plaintiff”) against defendants Costco Wholesale Corporation and Brett Goldstein (“Defendants”), pleading causes of action for general negligence and premises liability. The Complaint alleged that on September 7, 2024, at 2660 Park Center Dr., Simi Valley, CA 93065, Defendants negligently, carelessly and recklessly maintained, failed to inspect, and operated their place of business and/or common areas as to cause Plaintiffs to slip and fall because of a wet slippery substance. As a result, Plaintiff sustained physical injuries.

On August 20, 2026, Plaintiff filed this Motion to Compel. Defendants oppose.

This matter is scheduled for a 5-7 day court trial on January 25, 2027.

II. Discussion

Plaintiff seeks an order compelling Defendants to answer Plaintiff’s Request for Production of Document, Set Two, request nos. 22, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 34, 35, 36, 37, 38, 39, 40, and 42 and monetary sanctions in the amount of \$5,060.00.

A. Legal Standard

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.) For discovery purposes, information should be regarded as relevant “‘if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.’ [Citation].” (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 288.) “California’s pretrial discovery procedures are designed to minimize the opportunities for fabrication and forgetfulness, and to eliminate the need for guesswork about the other side’s evidence, with all doubts about discoverability resolved in favor of disclosure.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1119.)

A demanding party may file a motion to compel further responses for production of documents pursuant to Code of Civil Procedure section 2031.310, which states in relevant part:

(a) On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

(1) A statement of compliance with the demand is incomplete.

(2) A representation of inability to comply is inadequate, incomplete, or evasive.

- (3) An objection in the response is without merit or too general.
- (b) A motion under subdivision (a) shall comply with each of the following:
 - (1) The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.
 - (2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040.
 - (3) In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.

Pursuant to Code of Civil Procedure section 2031.310, subdivision (b)(1), a motion to compel further production must set forth specific facts showing good cause justifying the discovery sought in the demand. Once good cause was shown by the moving party, the burden shifts to the objecting party to justify the objection. (See *Kirkland v. Superior Court (Guess?, Inc.)* (2002) 95 Cal.App.4th 92, 98.)

“The trial court retains the discretion to weigh the burden of compliance against the likelihood of producing helpful information, to avoid duplicative production, and to narrow demands if appropriate to balance the reasonable concerns of both parties.” (*Volkswagen of America, Inc. v. Superior Court (Rusk)* (2006) 139 Cal.App.4th 1481, 1497.) Citing *Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761, the court in *Volkswagen of America, Inc. v. Superior Court (Rusk)*, *supra*, 139 Cal.App.4th at page 1497, stated:

In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence. [Citations.] As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. [Citation.] Furthermore, California's liberal approach to permissible discovery generally has led the courts to resolve any doubt in favor of permitting discovery. [Citation.] In doing so, the courts have taken the view that if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the nondiscoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute. [Citations.] The courts have also taken the view that wherever possible objections to discovery should be resolved by protective orders addressing the specific harm shown by the respondent as opposed to a more general attack on the ‘relevancy’ of information the proponent seeks to discover.

B. Application

1. Further Responses

The Declaration of Kristine Azatya, attorney for Defendant Costco Wholesale Corporation, attached as Exhibit A, Defendant's Further Response to Request for Production of Documents, Set Two, was served on August 31, 2026. Exhibit B is the verification to the further responses. Given that the responses are to all the document productions at issue and Plaintiff has not disputed the sufficiency of the responses, the Court finds that the Motion is moot with respect to the request to compel further responses. (See Weil & Brown, The Rutter Group: Cal. Prac. Guide Civ. Proc. Before Trial (Rev. June 2026) Ch. 8M-2, ¶ 8:2008 [production of documents after motion to compel may moot out the motion but not request for sanctions].)

2. Request for Monetary Sanctions

"Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. h.) "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, Rule 3.1348(a).)

Defendant Costco argues that sanctions should not be imposed since it did not act with bad faith and Plaintiff failed to identify any purported deficiencies in the responses. However, responses were still missing as to Nos. 26, 29 and 30 as promised by Defendant Costco in its August 17, 2026 letter by the filing of the motion. Therefore, the Court grant monetary sanctions under Code of Civil Procedure section 2031.310, subdivision (h.).

The Court finds that Plaintiff's counsel request is excessive and reduces the preparation to 2 hours to prepare the motion, 0.5 hours to review the opposition and 1 hour to prepare for and attend the hearing for a total of 3.5 hours. Since Plaintiff's counsel bills at \$500 per hour, the fees are \$1,750. With the \$60 filing fee, the total sanctions are \$1,810.

III. Conclusion

The motion to compel further responses is MOOT.

The request for monetary sanctions against Defendant is GRANTED in the amount of \$1,810.00.